

4. **25CV05091 De Baun, Roger Dale v. Fulton, Lauren Lynn et al.**

EVENT: Defendants Mahmood Merchant and Amina Merchant, as Trustees of the Merchant Family Living Trust, Demurrer to Plaintiff's First Amended Complaint

Preliminarily, the demurrer is overruled on uncertainty grounds. Demurrers for uncertainty are disfavored, and are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond. (*A.J. Fistes Corp. v. GDL Best Contractors, Inc.*, (2019) 38 Cal. App. 5th 677, 695)

Premises Liability

The demurrer is OVERRULED. Paragraph 45 of the FAC sufficiently alleges facts that Defendant created and/or increased the dangerous condition on the sidewalk.

Title III of the ADA

The demurrer is SUSTAINED WITH LEAVE TO AMEND.

Plaintiff does not dispute that liability under Title III of the ADA does not arise simply because the public sidewalk adjacent to the business is in violation of the ADA. Both sides acknowledge the alleged discrimination must have a connection to the goods or services of the physical public accommodation. The FAC does not allege a connection between the services Defendant Merchant provides (i.e., lodging) and an ADA violation. It does not allege the hotel was inaccessible due to some underlying ADA violation within the hotel property.

CDPA

The demurrer is SUSTAINED WITH LEAVE TO AMEND. As Plaintiff acknowledged, ADA liability is a pre-requisite to California Disabled Persons Act liability.

Unruh Claim

The demurrer is SUSTAINED WITH LEAVE TO AMEND. Plaintiff's claim is derivative of his ADA claim.

Public Nuisance

Consistent with the ruling on the premises liability claim, the demurrer is OVERRULED.

To the extent leave to amend is granted, Plaintiff shall amend within 20 days.
Merchant Defendants shall prepare and submit a form of order within 2 weeks.

5. 26CV01430 McMillian, Shawn Anthony v. Google, LLC

EVENT: Google LLC's Demurrer to Complaint

In light of the First Amended Complaint the demurrer is moot.

6. 26CV02410 In re: Brines-Ettinger, Leigha Cristalin

EVENT: Change of name (adult)

There is no proof of publication on file. Upon the filing of the proof of publication, the Court will sign the decree provided.

7. 26CV02430 In re: Jones, Sherri Rene

EVENT: Change of name (minor)

CCP 1277 requires the nonconsenting parent be served with the petition a minimum of 30 days before the hearing. According to the proof of service, the non-consenting parent was served 12 days before the hearing. As a result, the hearing is continued to October 14, 2026 at 9:00am. The clerk is directed to mail notice of the continued hearing to:

Raymond Lopez Jr.

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Chico, CA95928